



U.S. Department
of Transportation

**Research and
Special Programs
Administration**

JAN 29 1998

400 Seventh Street, S.W.
Washington, D.C. 20590

**DOT-E 10130
(FOURTH DIVISION)**

EXPIRATION DATE: September 30, 1998

(FOR RENEWAL, SEE 49 CFR 107.109)

1. **GRANTEE:** U. F. Strainrite, Inc.
Lewiston, ME

2. **PURPOSE AND LIMITATIONS:**

This exemption authorizes the manufacture, marking and sale of collapsible, disposable polyethylene-lined woven polypropylene bulk bags for shipment of certain Class 8 and 9 and Division 4.1, 4.2, 4.3, 5.1 and 6.1 materials. This exemption provides no relief from any regulation other than as specifically stated herein.

3. **REGULATORY SYSTEM AFFECTED:** 49 CFR Parts 106, 107 and 171-180.

4. **REGULATIONS FROM WHICH EXEMPTED:** 49 CFR 173.240(d); 173.241(d); and 173.242(d).

5. **BASIS:** This exemption is based on the application of U.F. Strainrite, Inc. dated January 12, 1998, submitted in accordance with 49 CFR 107.109.

6. **HAZARDOUS MATERIALS (49 CFR 172.101):**

Hazardous materials description -- proper shipping name	Hazard Class/ Division	Identi- fication Number	Packing Group
Packing group III solid materials meeting the definition of Class 8 and 9 and Division 4.1, 5.1, and 6.1 may be transported in packaging prescribed in paragraph 6 of this exemption.			

Expired - No Renewal Yet - NOT Active

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Hazardous materials description -- proper shipping name	Hazard Class/ Division	Identi- fication Number	Packing Group
Solid materials meeting the definition of Class 8 and 9 and Division 1.5D, 4.1, 4.2, 4.3, 5.1, and 6.1 listed in Appendix (A) of this exemption.			

And other solid materials which are specifically identified to, and acknowledged in writing by, the Office of Hazardous Materials Exemptions and Approvals (OHMEA) prior to the first shipment.

7. PACKAGING(S) and SAFETY CONTROL MEASURES:

a. PACKAGING - Packaging prescribed is a non-DOT specification collapsible, flexible, disposable (non-reusable) bulk bag (Rite sack). The bag is fabricated of woven polypropylene, incorporating liftstraps of woven polyester webbing, a lining of polyethylene film (of 0.003 inch minimum thickness) and having discharge and inlet openings closed by means of nylon tie ribbons, and a capacity of not over 2,508 pounds. Packaging prescribed may or may not be over packed in 1300 pound test, triple wall (triple AAA flute) Class II Export grade, corrugated fiberboard box fastened horizontally with metal nail studs to wood measuring at least 3/8 inches thick, secured to a wood pallet base (WWII), or may consist of a bulk bag which is reinforced with rigid fiberboard side panels (RSCIII).

The following test procedures are considered a minimum to ensure that each packaging in service be capable of passing one of the two following test procedures:

(1) Drop tests (at least three separate bags from a height of four feet); Jerk test & Topple test (at least two separate bags - one bag for each test); Topple and Drag test, Righting test, and Abrasion test (at least one bag used for all these tests - in addition, the bag(s) used must have also been used in either a drop, jerk, or topple test); as described in "Procedures for Performance Testing of Flexible Intermediate Bulk Containers," Packaging Institute, U.S.A., procedure T-4102-85, dated February 1985. These test results must be on file with OHMEA; or

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(2) Top lift test; Tear test; Stacking test; Drop test; Topple test; Righting test; - at least one bag must pass these tests (one bag may be used for all tests or one bag for each test) at the packing group II level as described in Chapter 16 of the United Nations "Recommendations on the Transport of Dangerous Goods Tenth Revised Edition". If this series of tests is used, then each bag must also be capable of passing the vibration standard described in Section 178.608 as found in the Code of Federal Regulations, 49 CFR, dated December 31, 1991.

8. SPECIAL PROVISIONS:

a. Offerors for transportation of the hazardous materials specified in this exemption may use the packaging described in this exemption for the transportation of such hazardous materials provided no modifications or changes are made to the packages, all terms of this exemption are complied with, and a copy of the current exemption is maintained at each facility from which such offering occurs.

b. Each packaging manufactured under the authority of this exemption must be either (1) marked with the name of the manufacturer and location (city and state) of the facility at which it is manufactured or (2) marked with a registration symbol designated by the Office of Hazardous Materials Exemptions and Approvals Program for a specific manufacturing facility.

c. A copy of this exemption, in its current status, must be maintained at each manufacturing facility at which this packaging is manufactured and must be made available to a DOT representative upon request.

d. Shippers using the packaging covered by this exemption must comply with all provisions of this exemption, and all other applicable requirements contained in 49 CFR Parts 171-180.

e. Shipment by highway of the bulk bag (Rite sack) must be in closed vehicles or freight containers, in full truckloads only, except that bags containing ammonium nitrate fertilizer may be transported on flatbed trailers provided the bags are restricted from movement and completely covered by waterproof tarpaulins.

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f. Shipment by highway of the bulk bag which are overpacked in a fiberboard box (WWII) or incorporate the rigid fiberboard reinforcement panels (RSCIII) must be in closed vehicles or freight containers in full or less than full truckload quantities. For shipment of less than truckload quantities, hazardous materials must be segregated and separated in accordance with 49 CFR Section 177.848.

g. Packagings that are used for the transportation of solid waste materials from plant site to waste disposal sites cannot be reused and may be shipped in full or less than full truckload quantities. For shipment of less than truckload quantities, hazardous materials must be segregated and separated in accordance with 49 CFR Section 177.848.

h. Shipment by rail must be in box cars except that COFC or TOFC service is authorized in accordance with 49 CFR 174.61.

i. When bulk bags, bag in a box or a bag with reinforced sides are transported by vessel, the following additional special provisions apply:

j. Materials in Divisions 4.3 (Dangerous when wet) and 5.1 (Oxidizers) that are permitted by the IMDG Code to be transported without secondary protection may be carried as break-bulk cargo, provided -

(1) The hold or compartment is dry and thoroughly cleaned of all residue of previous cargo, and all loose debris and dunnage are removed.

(2) The hatches are inspected for watertightness before loading.

(3) The hold is free of sharp projections that could tear or puncture the bags.

(4) After the bags are unloaded, the hold or compartment is inspected for spillage and any residue removed.

(5) No other hazardous material or non-regulated combustible material is stowed in the same hold or compartment.

ii. When any Division 5.1 material (Oxidizer) that is carried as break-bulk cargo is loaded or unloaded -

(1) Firehoses must be laid out in the loading or unloading area and must be operable at all times.

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(2) Smoking, carrying matches or lighting devices, or performing hot work is prohibited in the loading or unloading area, and the area must be posted with appropriate warning signs.

iii. The provisions of 49 CFR 176.410(d), except subparagraphs (d)(1) and (d)(2), do not apply to shipment of ammonium nitrate fertilizer (UN2067) by vessel under this exemption.

k. Each packaging configuration must be permanently and durably marked, in accordance with the requirements of Section 172.331 in letters at least two inches high on a contrasting background. In addition, for shipments by cargo vessel, the marking requirements of subsection 26.1.5 of the General Introduction to the IMDG Code must be met. The use of labels, tags or signs for marking purposes is prohibited.

l. Each packaging manufactured under the authority of this exemption must be either (1) marked with the name of the manufacturer and location (city and state) of the facility at which it is manufactured or (2) marked with a registration symbol designated for a specific manufacturing facility.

m. When used, the corrugated fiberboard overpack and the rigid panel configuration, described in paragraph 6 above, must be marked "DOT-E 10130" in letters at least two inches high on a contrasting background in addition to the marking required by 49 CFR 173.25.

n. Consistent with the regulations adopted under Docket HM-181E for intermediate bulk containers (IBCs), exemptions for IBCs of the type covered by those regulations will not be allowed new construction after September 30, 1996. Existing IBCs may be continued in service provided renewal provisions under Section 107.109 are met, until September 30, 1998 under the conditions specified in the exemption that applies to their use. After September 30, 1998, each IBC must conform to, and be certified as meeting, a UN IBC standard set forth in Subparts N and O of Part 178 of the Hazardous Materials Regulations (HMR; 49 CFR). A provision for approval of an equivalent IBC is specified in 49 CFR 178.801(i).

9. MODES OF TRANSPORTATION AUTHORIZED: Motor vehicle, rail freight, and cargo vessel.

10. MODAL REQUIREMENTS:

a. A copy of this exemption must be carried aboard each cargo vessel, motor vehicle used to transport packages covered by this exemption.

b. Shipments made by cargo vessel must be made in conformance with Section 26 of the General Introduction of the IMDG code.

11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this exemption and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. Section 5101 et seq.

- o All terms and conditions prescribed in this exemption and the Hazardous Materials Regulations, Parts 171-180.
- o Registration required by 49 CFR 107.601 et seq., when applicable.

Each "Hazmat employee", as defined in 49 CFR 171.8 who performs a function subject to this exemption must receive training on the requirements and conditions of this exemption in addition to the training required by 49 CFR 172.700 through 172.704.

No person may use or apply this exemption, including display of its number, when the exemption has expired or is otherwise no longer in effect.

12. REPORTING REQUIREMENTS: The carrier is required to report any incident involving loss of packaging contents or packaging failure to the Associate Administrator for Hazardous Materials Safety (AAHMS) as soon as practicable. (49 CFR 171.15 and 171.16 apply to any activity undertaken under the authority of this exemption.) In addition, the holder(s) of this exemption must also inform the AAHMS, in writing, as soon as practicable of any incidents involving the package and shipments made under this exemption.

Issued at Washington, D.C.

Alan I. Roberts
Alan I. Roberts
Associate Administrator
for Hazardous Materials Safety

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Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Research and Special Programs Administration, Department of Transportation, Washington, D.C. 20590.
Attention: DHM-31.

The original of this exemption is on file at the above office. Photo reproductions and legible reductions of this exemption are permitted. Any alteration of this exemption is prohibited.

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APPENDIX (A)

Hazardous materials description/proper Shipping Name	Hazard Class/ <u>Division</u>	Identification <u>Number</u>	Packing <u>Group</u>
Aluminum bromide, anhydrous	8	UN 1725	II
Aluminum chloride, anhydrous	8	UN 1726	II
Ammonium hydrogen fluoride, solid	8	UN 1727	II
Ammonium nitrate mixed fertilizer	5.1	UN 2067	II
Ammonium nitrate-fuel oil mixture ¹	1.5D	NA 0331	II
Ammonium perchlorate	5.1	UN 1442	II
Antimony compounds, inorganic, solid, n.o.s.	6.1	UN 1549	II
Antimony tribromide, solid	8	NA 1549	II
Arsenic compounds, solid, n.o.s. ³	6.1	UN 1557	II
Arsenic trioxide	6.1	UN 1561	II
Bromoacetic acid, solid	8	UN 1938	II
Calcium carbide ¹	4.3	UN 1402	II
Calcium cyanide ¹	6.1	UN 1575	I
Calcium hypochlorite, hydrated	5.1	UN 2880	II
Calcium silicide ⁴	4.3	UN 1405	II\III

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APPENDIX (A)

Carbamate pesticides, solid, toxic, n.o.s. (contains 15% or less aldicarb by weight)	6.1	UN 2757	II
Chloroacetic acid, solid	8	UN 1751	II
Chromic acid, solid ¹	5.1	NA 1463	II
Dichloroisocyanuric acid, dry	5.1	UN 2465	II
Lithium hypochlorite mixtures, dry (containing not more than 42 % available chlorine) ¹	5.1	UN 1471	II
Magnesium granules, coated	4.3	UN 2950	III
Nicotine sulfate, solid	6.1	UN 1658	II
Organophosphorus pesticides, solid, toxic, n.o.s. {Fonofos} {Dyfonate II 10-G}; {Dyfonate II 15-G} or {Dyfonate II 20-G}	6.1	UN 2783	II
Oxidizing substances, solid, n.o.s. (1-Bromo-3-chloro-5,5 -demethylhydantion)	5.1	UN 1479	II
Pesticides, solids, toxic, n.o.s.	6.1	UN 2588	II
Poisonous solids, n.o.s. (Amyl phenol) (Butyl phenol) (Octyl phenol)	6.1	UN 2811	II
Potassium cyanide ¹	6.1	UN 1680	I
Potassium hydroxide, solid	8	UN 1813	II
Potassium perchlorate, solid	5.1	UN 1489	II
Self heating substance, solid, n.o.s. (sulfur, thermal cracked coke)	4.2	UN 3088	II\III
Sodium azide	6.1	UN 1687	II

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APPENDIX A

Sodium hydrogen fluoride	8	UN 2439	II
Sodium chlorate	5.1	UN 1495	II
Sodium cyanide ¹	6.1	UN 1689	I
Sodium hydrosulfite ¹	4.2	UN 1384	II
Sodium hydroxide, solid	8	UN 1823	II
Sodium perchlorate	5.1	UN 1502	II
Sodium sulfide, anhydrous ¹	4.2	UN 1385	II
Thallium compounds, n.o.s.	6.1	UN 1707	II
Trichloroisocyanuric acid, dry	5.1	UN 2468	II
Trichloro-s-triazinetri- one, dry ²	5.1	UN 2468	II
Zinc dust	4.3	UN 1436	II\III

Legend:

¹ Transport by vessel not authorized.

² This shipping description may be used only when all or part of the transport is by vessel. For transport by motor vehicle or rail freight, use "trichloroisocyanuric acid, dry."

³ For mixtures of arsenic compounds, the name(s) of the hazardous components of the mixture must appear in the parenthesis.

⁴ Packaging for calcium silicide must be hermetically sealed.